

BVEA/BVSD Tentative Agreement Summary May 10, 2021

The BVEA Negotiations Team, BVSD Administration, and BVSD Board of Education reached tentative agreement on the following items during our negotiations process. This Agreement, effective August 1, 2021 through July 31, 2024, will now be considered for formal ratification by the BVEA membership and approval by the BVSD Board of Education.

• Compensation and Benefits

- COLA = 3% for 2021-2022
- Horizontal and Vertical movement will continue
- National Board Certification Stipends 5% to include psychologists and counselors
National Association of School Psychologists
National Board for Certified Counselors
Phased-in at 2.5% each year for 2021-22 and 2022-23

PREAMBLE

~~The Boulder Valley Board of Education, the Boulder Valley Education Association, and the employees of the Boulder Valley School District recognize and declare that it is their mutual aim to provide a quality education to all pupils of the District. Accordingly, the parties recognize and agree that the employees, the Board, and the Administration have the responsibility to:~~

~~Respect each pupil's dignity and worth,
Respect each pupil's right to learn,
Uphold the standards of the profession,
Promote quality teaching.~~

Boulder Valley Education Association recognizes the development and attainment of a quality education is a collaborative responsibility and requires mutual understanding and cooperation among the Boulder Valley School District Board of Education, the District Administration and the Association. The heart of this agreement is centered on reciprocal support and communication. When teachers feel supported and are engaged, the students we teach will be more successful.

Furthermore, we believe that each student is a unique individual who needs a secure, caring, and stimulating atmosphere in which they mature emotionally, intellectually, physically and socially and where they have the opportunity to achieve and succeed academically.

We know that students are more successful when they see themselves at the front of their classroom. Teachers in Boulder Valley School District will provide

culturally responsive teaching and honor the dignity of their students, and therefore, it is our goal to promote the hiring and retaining of teachers of color who represent the students they teach.

BVEA, the Board of Education and BVSD have the responsibility to uphold and honor this bargaining agreement. By doing so, the students of BVSD will have equitable access to their education which will generate opportunity.

SECTION C: DUTIES OF THE EMPLOYEE

C-18 Assignment of Specialists

C-18.1 Special Education

If a special education employee believes and/or has evidence that the size and/or composition of his/her/their caseload is not consistent with sound and safe educational practices, he/she/they will request a meeting with the building principal and/or a designated special education director to review the situation. When requested the building administrator and/or designated special education director shall convene a meeting within ten 10 working days. The review will consist of consultation and collaboration between the special education employee and the building administrator and/or special education director to find a timely solution. Possible solutions could include compensation for additional workload, paraprofessional support to address increased student needs, release time for additional special education paperwork, additional planning time for progress monitoring, hired assistants for specialists and/or an increase in FTE to cover the additional caseload. These solutions are not exhaustive of other mutually agreed upon means to address caseload. If no agreement is reached to relieve the situation within five (5) days the issue will be taken to the Designated Director of Special Education who will review the caseload using the appropriate formula as well as other factors in order to determine a mutually agreed upon solution with the employee. If a mutually agreed upon solution is not reached by the building administration and/or designated special education director within five (5) working days following the meeting This will be completed within ten (10) working days. If the special education employee continues to have concerns, a request for assistance can be made to BVEA and/or HRD.

The District will make every reasonable effort to meet the following IEP special education guidelines. Guidelines for IEP caseloads will be reviewed, yearly by an advisory representative group comprised of special education teachers, administrators, Human Resources, and BVEA representation. Guidelines to request an IEP caseload review are based upon the following numbers:

OT/PT 1:50

PSY/SW 1:50 to be reviewed in 2023 based on MOU language

SLP	1:43 Elementary/1:46 Secondary
Resource	1:21 Elementary/1:25 Middle/High School
Multi-intensive	1:10 All levels
ILC – Multi/Autism	1:10 All levels for caseload review numbers
ICAN	1:10 Elementary/Middle School/1:15 High School
Day Treatment	1:8

<u>BCBA</u>	<u>1:3 ILC classrooms</u>
<u>ECSE*</u>	<u>1:7*</u>
<u>ECSE ILC</u>	<u>1:10 (1:5 AM and 1:5 PM)</u>

***(BVSD ECSE model of 1:5 students with IEPs per preschool a.m. or p.m. session, with 1:7 inclusive of mid year eligibility)**

~~Nothing would preclude a teacher requesting a caseload review based on his/her/their responsibilities, including case management duties.~~

C-25 SPECIAL EDUCATION Special Education staff will not be required to head up 504 teams or manage 504 accommodations for non-special education students. **Special Education staff will not be required to maintain individual MTSS plans or READ plans but are welcome to collaborate with the general educator.**

MTSS is a general education responsibility and initiative, but oftentimes specialists can be experts in offering interventions. School Psychologists and social workers will serve as the bridge between MTSS and special education through process collaboration and consultation with the MTSS team.

SECTION E: COMPENSATION

E-8 NATIONAL BOARD CERTIFICATION

E-8.1 Employees who complete the necessary requirements and are certified through the National Board Certification program will receive a five percent (5%) stipend. Such stipend will be effective the semester following submission of certification to the Human Resources Division and will be paid in equal monthly installments.

E-8.2 BVSD Employees who ~~have~~ earned their ASHA Certificate of Clinical Competence and were hired prior to July 31, 2017 will continue to receive a five percent (5%) stipend as long as they are assigned to an SLP position and they maintain this certification.

E-8.3 Effective August 1, 2021, Employees in possession of National Association of School Psychologists (NASP) or National Board for Certified Counselors (NBCC) certification shall receive an annual stipend equal to 2.5% of the Employee's annual salary. Effective August 1, 2022, Employees so certified shall receive an additional 2.5% stipend, thereby totaling a 5% stipend for the abovementioned certifications.

E-8.4 In order to be eligible for the certifications in E-8.1 and E-8.3, Employees shall be non-probationary. Coursework required for the above certifications shall not be creditable for horizontal movement on the salary schedule. Any current Employees pursuing the above mentioned certifications as of June 1, 2021 shall be held harmless from these provisions.

E-8.5 Employees with one of the above certifications shall remain in good standing with their professional practice. In the event that an Employee so certified is placed on Level II of the evaluation process (see Sec. D-9 et seq), the stipend may be suspended until the Employee returns to Level One.

E-8.6 Employees with one of the above certifications shall be expected to occupy and remain in a job classification related to the pertinent certification. Employees who voluntarily transfer out of such a position may be subject to removal of the stipend.

E-8.7 BVEA and HRD shall review such cases and provide written notice to Employees impacted by Sec. E-8.5 and E-8.6.

SECTION J: FUTURE CONFERENCE AND TERM

J-1 This Agreement shall be in full force and effect from its execution on August 1, ~~2018~~ 2021 and including July 31, ~~2021~~ 2024. This Agreement shall automatically continue in full force and effect annually from year to year unless either of the parties hereto shall terminate the same in accordance with the procedures outlined in J-2.

J-1.1 If either party shall desire to change any of the provisions of this Agreement, it shall give written notice as outlined in B-3.

J-1.2 If the parties have not reached an agreement on or before the end of the Contract or reopening term, all provisions of this Agreement shall remain in effect unless specifically terminated in accordance with the following procedure.

J-1.3 In October, 2016, the large negotiations group will meet to negotiate Section J.

J-2 TERMINATION OF AGREEMENT: Ten (10) or less working days prior to the termination date of this Agreement on the first anniversary date or at any time thereafter, if no Agreement on the questions at issue has been reached, either party may give written notice to the other party terminating the Agreement not less than ten (10) days after receipt of notification by registered mail. Such notice shall state the date and hour of such termination. All provisions of the Agreement shall remain in full force and effect until the specified time has elapsed. During this period, attempts to reach an Agreement shall be continued.

J-2.1 If the parties have failed to resolve their differences by the specified date, all obligations under this Agreement are automatically cancelled.

ACCEPTED AND APPROVED

Boulder Valley Education Association
Representing the employees of Boulder
Valley School District RE2

by: _____
President
Boulder Valley Education Association

date: _____

ACCEPTED AND APPROVED

Board of Education of the
Boulder Valley Schools

by: _____
President
Board of Education
Boulder Valley School
District RE2

date: _____

Memorandum of Understanding

Hiring, Retaining, and Supporting of Teachers of Color

In Partnership Between
Boulder Valley School District
(BVSD)
and
Boulder Valley Education Association
(BVEA)

This Memorandum of Understanding (MOU) sets for the terms and understanding between the Boulder Valley School District and the Boulder Valley Education Association for the recruitment, hiring, and retention of teachers of color.

Background

BVSD and BVEA are committed to increasing the number of teachers of color in our district and supporting our BVSD Strategic Plan Initiative **6a. Define and put into practice culturally responsive principles and best practices that challenge inequity and bias.**

Purpose

Support the four point plan and strategies that Human Resources has developed

1. Recruitment year round
2. Accelerated hiring
3. Retention
4. Identify institutional barriers

This MOU will enable the BVSD and BVEA to work during the 2021-2022 school year to study current hiring and retention practices and develop a system of support for teachers of color.

Duration

This MOU shall become effective upon signature by the authorized officials and will remain in effect until modified or terminated by either party.

Authorized Officials

Signature on file
Dr. Rob Anderson
BVSD Superintendent

Date: May 19, 2021

Signature on file
Terri R. Mulford
BVEA President

Date: May 19, 2021

Memorandum of Understanding-Opportunity and Access for All Staff

In Partnership Between
Boulder Valley School District (BVSD)
and
Boulder Valley Education Association (BVEA)

PURPOSE:

To increase the opportunity and access for all staff to participate in representation on committees, task forces, the development of curriculum, etc., we agree that innovative approaches will be used to invite involvement and/or provide a means for access in addition to in-person meetings.

EXPLANATION:

Prior to the COVID-19 Pandemic, every committee, etc. was expected to meet in person. Using innovative approaches to hold these meetings, equal opportunity and access will be available for educators. Educators who must meet outside the school day will be paid at the curriculum rate or will be offered the appropriate leadership credit.

We will gather information and data during the 2021-2022 school year regarding the efficacy of this MOU. Data to be collected will include but not be limited to the following:

- Did participation in meetings increase?
- Were participants able to join a committee for the first time?
- Did participants appreciate these innovative methods vs. ONLY in-person meetings?
- Do stakeholders feel more engaged using these approaches?
- Did we meet the outcome of a decrease in workload?

DURATION

This MOU is at-will and may be modified by mutual consent of authorized officials from BVEA and BVSD. This MOU shall become effective upon signature by the authorized officials from BVEA and BVSD and will remain in effect until modified or terminated by either of the partners by mutual consent.

Authorized Officials

Signature on file
Dr. Rob Anderson
BVSD Superintendent

Signature on file
Terri R. Mulford
BVEA President

Date: May 19, 2021

Date: May 19, 2021

Memorandum of Understanding-Bridging the Gap of MTSS to Special Education

In Partnership Between
Boulder Valley School District
(BVSD)
and
Boulder Valley Education Association
(BVEA)

Purpose:

We believe that there needs to be a bridge between the resources in Special Education and the implementation of an effective Multi-Tiered Systems of Support. Current FTE assignments for school psychologists and social workers have not been aligned with our bargained agreement which states 1:50. The purpose of the MOU is to define FTE allocations for school psychologists and social workers according to the school size which will serve to bridge the coordination of effective MTSS systems across the district.

Explanation:

This MOU is based on the ideal standards from the Practice Model of the National Association of School Psychologists. With implementation of the Practice Model and appropriate FTE allocation, the school psychologist and social worker will be uniquely positioned to bridge special education and MTSS, both academically and behaviorally, across all tiers of support. *“The comprehensive implementation of school psychological services has consistently shown to support teachers’ ability to teach and students’ ability to learn, and is a cost effective investment in the success of all students.”* NASP 2010 Model for Comprehensive and Integrated School Psychological Services, NASP Practice Model Overview.

In order to align the FTE of school psychologists and social workers with the purpose of specifically bridging MTSS and Special Education we recommend school psychologist and social worker allocations be based on school size formulas. A tiered approach will be used to implement recommendations. For the 2021-2022 school year High Schools will be prioritized. By September 15, 2021, a committee will be formed and meet to discuss recommendations for Middle School and Elementary School FTE allocations for the 2022-2023 school year.

School psychologist/social worker FTE allocation committee:

The committee will be tasked with research of the NASP Practice Model as it applies to BVSD special education and MTSS. The committee will make recommendations about FTE allocations based on school size including potential changes to Elementary and

Middle School FTE allocation. The committee will meet a minimum of 3 times during the school year in order to provide suggestions for FTE allocation changes at Middle and Elementary School levels prior to FTE budget allocation.

Committee Membership will be comprised of:

BVSD HR administrator

One Special Education director

One Elementary, one Middle School, and one High School principal

BVSD District MTSS coordinator

BVEA members will include--BVEA President and/or Vice President

Three school psychologists and/or social workers, one elementary school teacher/counselor, one middle school teacher/counselor, and one high school teacher/counselor

High School FTE Allocation Formula:

- 1800+ 2.0
- 1200-1799 1.5
- 750-1199 1.2
- 500-749 1.0
- 350-499 0.8
- 200-349 0.6
- 50-199 0.4
- 0-49 0.1

With the application of the formula, this represents an increase of 1.8 FTE for High Schools for the 2021-2022 school year. With this increase in FTE the focus of the school psychologist/social worker role enables schools to make the best use of their skills and expertise. Through collaboration and consultation with MTSS (and to give) ALL students will gain access to the services that can help them stay engaged and successful in school.

Estimated Cost: \$224,500

Duration:

This MOU is at-will and may be modified by mutual consent of authorized officials from BVEA and BVSD. This MOU shall become effective upon signature by the authorized officials from BVEA and BVSD and will remain in effect until modified or terminated by either of the partners by mutual consent.

Authorized Officials:

Signature on file

Dr. Rob Anderson

BVSD Superintendent

Date: May 26, 2021

Signature on file

Terri R. Mulford

BVEA President

Date: May 26, 2021

Memorandum of Understanding Assessment

In Partnership Between Boulder Valley School District (BVSD)
and
Boulder Valley Education Association (BVEA)

PURPOSE

- **To increase collaboration between the District Assessment Team (DAT) and the District Instructional Leadership Committee (DILT) when developing the Balanced Assessment System (BAS).**
- **To develop methods and standards for gathering feedback from teachers as they implement the BAS.**

Explanation

We honor the hard work already begun by the members of the DILT and are committed to collaborating with the DILT and the DAT.

We recognize the District has made a commitment to developing a BAS that connects instruction with meaningful assessment which will inform instruction and lead to student growth.

The DAT and the DILT are committed to working collaboratively to implement the BVSD BAS and to gather information about its effectiveness and to provide feedback on its sustainability as it is implemented.

The following BVSD Assessment Principles outline these DAT purposes of assessment:

- Supporting student success through universal instruction
- Supporting student success through screening, intervention, and progress monitoring
- Supporting student success through educator growth
- Supporting student learning through continuous improvement at the system level BVSD Assessment Principles

We will gather data over the next year around the implementation of these assessments and the impact they have on student learning outcomes. As we gather data, we will look for episodes where teacher voice was included (See sample questions below).

The district has committed to having the DAT and the OILT meet at least two times a year to share progress with the BAS and to gather feedback from teachers.

Possible Questions for teachers to collect feedback

- Were teachers given an opportunity to contribute to the development of the BAS?
- Did the assessments help guide instruction so that students could demonstrate measurable growth and close the opportunity gap?
- Are the assessments aligned to the units developed and did they inform instruction?
- Are the assessments incorporated into the Scope and Sequence and fit in the instructional models?
- How are time considerations taken into account?

DURATION

This MOU is at-will and may be modified by mutual consent of authorized officials from BVEA and BVSD. This MOU shall become effective upon signature by the authorized officials from BVEA and BVSD and will remain in effect until modified or terminated by either of the partners by mutual consent. This MOU will be revisited in one year Spring 2022 and status determined.

Authorized Officials

Signature on file

Dr. Rob Anderson
BVSD Superintendent

Signature on file

Terri R. Mulford
BVEA President

Date: May 19, 2021

Date: May 19, 2021

**Memorandum of Understanding-Boulder Universal
2021-2022**

Between
Boulder Valley School District
(BVSD)
and
Boulder Valley Education Association
(BVEA)

This Memorandum of Understanding (MOU) sets the terms and understanding between BVSD and BVEA to guarantee that the Boulder Universal (BU) Unit B employees listed below will not be displaced for the 2022-2023 school year by Unit B employees with more seniority hired for the 2021-2022 school year.

Employee ID Numbers

15481, 11102, 13183, 4454, 15591, 12258

Background

Due to the COVID19 Pandemic, BU has had an increase in student enrollment; therefore, more FTE was allocated for BU to hire additional Unit B employees. This increase in enrollment is projected to decrease once the Pandemic situation is under control and more students will return to brick and mortar schools.

Purpose

This MOU will guarantee that the original Unit B employees listed above will not be displaced by Unit B employees with more seniority hired for the 2021-2022 school year as explained in Section D-19(c) of the Agreement. Any non-probationary teacher so displaced will be placed into a position within the district. Non-probationary Unit B employees hired for the 2021-2022 school year will be notified of this MOU.

Duration

This MOU shall become effective August 1, 2021, upon signature by the authorized officials, and will remain in effect until July 31, 2022.

Authorized Officials

Signature on file

Dr. Rob Anderson
BVSD Superintendent

Signature on file

Terri R. Mulford
BVEA President

Date: May 19, 2021

Date: May 19, 2021

Memorandum of Understanding-Middle School Planning

In Partnership Between
Boulder Valley School District
(BVSD)
and
Boulder Valley Education Association
(BVEA)

This Memorandum of Understanding (MOU) sets for the terms and understanding between the BVSD and BVEA to increase planning time for teachers at the Middle School level.

Background

BVSD and BVEA mutually recognize that political decisions and election outcomes 25 years ago have led to major inequities, specifically in terms of planning time, for middle school teachers in District schools. Our two groups further recognize that sufficient teacher-directed planning time is essential to the provision of high quality instruction for all students as outlined by the District's Strategic Plan. Finally, both groups recognize their historic commitment to site-based shared decision-making.

Purpose

This MOU will set conditions for planned disbursement to District middle schools of \$1,150,000, with said monies to be utilized exclusively for implementing locally-devised solutions to increase teacher plan time. Monies will be allocated on a per-pupil basis.

In support of this initiative:

Between August and October 31st, 2021, Middle Schools will use a consensus-style shared decision-making model to develop plans for how to use their site's allocated funds to increase teacher plan time. All schools will use a consistent process with outside facilitators who are trained in and will use the "Chadwick Method" to reach group consensus. Building shared decision-making groups will continue to meet in the Spring semesters of 2022, 2023 and 2024 to monitor and make adjustments to implementations as needed.

Schools will be encouraged to develop means of increasing teacher planning time in ways that work best for their respective sites. Avenues to be considered might include changes to daily instructional schedules; the hiring of a licensed teacher; hiring Education Support Professionals to supervise Study Halls; hiring Building Substitute Teachers; and other means as might be devised by the building-level shared decision-making groups.

Create and implement a district-wide committee by September 21, 2021 charged with developing recommendations regarding the need for increased planning time for middle level teachers. Prior to March 1st of 2022, 2023 and 2024 this committee will monitor

and make recommendations for considerations aligned with the budgeting process. The task force shall consider, but will not be limited to:

- What are the unique needs of middle school students and how can increased planning time enhance the education experience for these students?
- What practices are currently in place to increase middle school teacher planning time both as a result of the increase in funding and prior to the increase?
- What resources do we currently provide and which additional resources could be brought to bear?
- Study of the question of how current district practice aligns with the middle school essentials and whether our current district leadership and community values call for further alignment.

The working group shall be composed of twelve (12) members but may be expanded as needed. The group shall be composed of the following members

6 middle level educators (including from one PK-8 middle school)

2 middle level principals

1 PK-8 principal

1 superintendent or designee

1 association president or vice president

1 member of the BVEA negotiations team

Funding

BVSD will disburse \$1,150,000 in August of 2021. For 2022 and 2023 every effort shall be made to increase this amount as yearly budgets are developed.

Duration

This MOU is at-will and may be modified by mutual consent of authorized officials from BVSD and BVEA. This MOU shall become effective upon signature by the authorized officials from BVSD and BVEA, and will remain in effect until modified or terminated by any one of the partners by mutual consent. In the absence of mutual agreement by the authorized officials from BVSD and BVEA, this MOU shall end on May 31, 2024.

Authorized Officials

Signature on file

Dr. Rob Anderson

BVSD Superintendent

Date: May 19, 2021

Signature on file

Terri R. Mulford

BVEA President

Date: May 19, 2021